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LEGAL INDETERMINACY AND THE ORIGINS OF NAZI LEGAL THOUGHT: THE CASE OF CARL SCHMITT

William E. Scheuerman

Carl Schmitt wasted little time before enthusiastically endorsing the National Socialist seizure of power in Germany in 1933. Within weeks of the Nazi takeover, Schmitt penned an array of apologetic essays in which he justified the Nazis' destruction of Weimar democracy as well as the persecution of Jews, Socialists and other so-called 'national enemies'.¹ Soon he put the finishing touches on *State, Movement, Folk*, which quickly became the object of a wide-ranging debate among German legal scholars anxious to influence the construction of a specifically Nazi legal alternative to the Weimar Republic's rendition of the liberal rule of law.² Although Schmitt probably preferred an alternative right-wing authoritarian solution to Weimar's crisis before 1933, he showed few reservations about embracing the Nazis in the immediate aftermath of their takeover: both his academic and polemical writings from 1933 offer unambiguous evidence of Schmitt's fervent quest to ally himself with the National Socialist regime.

Central for understanding the relationship between Schmitt's horrible Nazi-era polemics and his oftentimes impressive pre-1933 writings, *State, Movement, Folk* summarizes both many of Schmitt's earlier criticisms of Weimar democracy and outlines the fundamentals of an alternative National Socialist legal order. Schmitt argues that the ongoing proliferation of vague, open-ended legal stand-

¹ Of special interest for my discussion here: Carl Schmitt, 'Das gute Recht der deutschen Revolution', *Westdeutscher Beobachter*, Vol. 12 (May 12, 1933). But Schmitt's numerous apologetic essays from this period predate even this one. For a reliable discussion of Schmitt's activities and polemical writings during this period: Bernd Rüthers, *Carl Schmitt im Dritten Reich* (Munich, 1990), esp. pp. 55–75.

² There is a massive German-language literature documenting Schmitt's important contributions to Nazi jurisprudence. For a fine survey of the German debate: Bernd Rüthers, *Entartetes Recht. Rechtslehren und Kronjuristen im Dritten Reich* (Munich, 1988). Also: Peter Caldwell, 'National Socialism and Constitutional Law: Carl Schmitt, Otto Koellreutter, and the Debate Over the Nature of the Nazi State, 1933–1937', *Cardozo Law Review* (1995).

For a discussion of the differences between Anglo-American and German conceptions of the rule of law: Franz L. Neumann, *The Rule of Law: Political Theory and the Legal System in Modern Society* (Leamington Spa, 1986).

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ards ('in good faith', 'in the public interest', 'public order'), already evident in the Weimar legal order and in every modern liberal democracy, suggests the anachronistic character of liberal conceptions of the rule of law: although classical defenders of the rule of law repeatedly emphasized the virtues of cogent, general legal norms, the liberal democratic legal order in fact decreasingly consists of such standards. According to Schmitt, vague legal standards potentially provide a starting point for transforming the remnants of liberal law in accordance with National Socialist ideals. Consequently, jurists sympathetic to the ongoing 'national renewal' should exploit ambiguous legal clauses by interpreting them in a manner compatible with Nazi aspirations. In the process, the vessel of existing German law can be filled with National Socialist concepts of a homogeneous German 'folk community', even before the Nazis succeed in generating statutes explicitly attuned to their political project.³

In response to those worried about the obvious dangers posed by this agenda to traditional legal protections, Schmitt's *State, Movement, Folk* offers a clever response. Judicial actors cannot be meaningfully regulated or bound by open-ended legal clauses anyhow. How can a vague standard like 'in good faith' possibly assure any determinacy within judicial decision making? Hence, the emergence of amorphous clauses within liberal democracy rendered traditional liberal conceptions of judicial decision making problematic well before the onset of the 'national renewal' in Germany. Of course, one might respond to Schmitt's observation here by demanding a halt to the proliferation of amorphous law. But *State, Movement, Folk* identifies two reasons for questioning this possible course of action. First, the exigencies of the contemporary interventionist state render vague legal standards 'unavoidable and indispensable'.⁴ Traditional concepts of the legal norm are made obsolete by the emergence of necessary but highly complex forms of state action. Second, the indeterminacy intrinsic to amorphous legal standard turns out to be nothing but the tip of the iceberg. In Schmitt's view, '[w]e have experienced that every [legal] word and every concept immediately becomes controversial, unsure, indeterminate and pliable in any fluctuating situation when different spirits and interests try to make use of them . . . From this perspective, all existing legal concepts are

³ Carl Schmitt, *Staat, Bewegung, Volk* (Hamburg, 1933), esp. pp. 42–6. Also: Carl Schmitt, *Fünf Leitsätze für die Rechtspraxis* (Berlin, 1933), as well as the somewhat later *Über die drei Arten des rechtswissenschaftlichen Denkens* (Hamburg, 1934). All translations are my own unless an existing English translation has been cited.

⁴ Schmitt, *Staat, Bewegung, Volk*, p. 43. I have discussed this facet of Schmitt's argument in detail in: W.E. Scheuerman, *Between the Norm and the Exception: The Frankfurt School and the Rule of Law* (Cambridge, 1994), pp. 68–80, where I attempt to reformulate the social democratic political theorist Franz L. Neumann's critique of Carl Schmitt: Neumann, 'The Democratic and Authoritarian State', in: *The Rule of Law Under Siege: Selected Essays of Franz L. Neumann and Otto Kirchheimer*, ed. William E. Scheuerman (Berkeley and London, 1996).

“indeterminate” legal concepts.’⁵ Classical liberal conceptions of a ‘mechanical and automatic binding’ of the judge to the legal norm are clearly overstated. *Pace* liberal jurisprudence *all* legal concepts are profoundly and unavoidably open-ended and indeterminate. Every legal decision is a ‘hard case’. Liberal demands to clarify and codify law are inherently flawed because no system of legal norms can hope to guarantee even a minimal degree of regularity and determinacy within legal decision making.

How then might the emerging Nazi political order guarantee some measure of control over the judiciary? Schmitt understands that the expansion of possibilities for judicial discretion could work both *for* and *against* the Nazis, especially in light of traditional legalist sympathies among some members of the German bureaucracy.⁶ Just after endorsing the expulsion of Jews and purported political radicals from the civil service, Schmitt argued that only a ‘bindedness to the folk’ (*Volksgebundenheit*) and ‘ethnic homogeneity’ (*Artgleichheit*) within the ranks of German jurists could successfully assure a measure of coherence within judicial decision making. Judicial actors must partake of German ethnicity if they are to grasp in full the subtleties and particularities of German law; ethnic Germans alone are ‘capable of seeing the facts of the case correctly, listening to statements rightly, understanding words correctly and offering a correct evaluation of people and things’ within the confines of an intrinsically German legal system.⁷ Effective legal interpretation rests on implicit assumptions deriving from our participation in the racial and ethnic life of a particular *Volk*. No matter that ‘ethnic cleansing’ necessitates terror: in Schmitt’s view, the struggle to develop an intrinsically German form of post-liberal legal determinacy demands nothing less. Legal reform requires a reform of legal *decision makers*. Legal determinacy can never be adequately achieved by means of a particular set of legal statutes or doctrines. Yet a deeper and more dependable degree of legal determinacy allegedly might be realized by establishing an ethnically homogeneous judiciary, free of alien (*artfremde*) ethnic and racial tendencies. Because legal decision-making relies to a significant degree on ‘unconscious movements’ of ethnic origin, only a judiciary possessing a homogeneous, ethnically predictable composition can guarantee legal predictability and determinacy.

For some scholars, the arguments of *State, Movement, Folk* represent nothing less than a betrayal of Schmitt’s most fundamental intellectual commitments. For them, Schmitt was a traditional conservative, a latter-day Hobbesian perhaps, but he was never comfortable with German fascism’s radical assault on the most important achievements of Western law. His alliance with the Nazis

⁵ Schmitt, *Staat, Bewegung, Volk*, pp. 43–4.

⁶ But it should be noted that some recent commentators have argued that the extent of such tendencies has been grossly exaggerated. Ingo Müller, *Hitler’s Justice: The Courts of the Third Reich* (Cambridge, 1991).

⁷ Schmitt, *Staat, Bewegung, Volk*, p. 45.

was at best opportunistic, and his seemingly enthusiastic anti-semitic polemics from the 1930s constituted nothing but 'lip service' that Schmitt was forced to pay to the Nazi regime.⁸

Here I hope to contribute to a growing body of scholarship critical of this revisionist view of Carl Schmitt's political and legal theory. First, I examine the early origins of Schmitt's critique of liberal conceptions of judicial decision making, the crucial but oftentimes ignored *Law and Judgement* and *The Value of the State and Significance of the Individual* (Sections I and II). Then I discuss the subsequent radicalization of Schmitt's hostility to liberal legal thinking that culminates in the militant anti-legalism of *Political Theology* (Section III). I emphasize the role of Schmitt's worrisome reflections on the problem of the *indeterminacy* of law. Despite its central place within Schmitt's thinking, his reflections on legal decision making have been repeatedly overlooked by the ongoing 'Schmitt renaissance' in English-speaking countries.⁹ Yet Schmitt's analysis of the problem of legal indeterminacy, which he formulates in some of his *earliest* writings, anticipates crucial elements of the ominous arguments found in *State, Movement, Folk*. Although it would be wrong to deny that Schmitt's ideas about liberal democratic political and legal ideas undergo an evolution, or that his theorizing after 1930 takes on increasingly radical hues, Schmitt's early analysis of the problem of legal indeterminacy shows that his Nazi-era legal theory represents less of a break within his thinking than many commentators have been willing to concede.¹⁰

⁸ George Schwab, *The Challenge of the Exception: An Introduction to the Ideas of Carl Schmitt* (New York, 1989); Joseph Bendersky, *Carl Schmitt: Theorist for the Reich* (Princeton, 1983).

⁹ For a brief introductory account: Paul Bookbinder, 'Roots of Totalitarian Law: The Early Works of Carl Schmitt', *Social Science*, Vol. 56, No. 3 (Summer 1981). I have also found the voluminous German literature on Schmitt helpful here. Hasso Hofmann, *Legitimität gegen Legalität. Der Weg der politischen Philosophie Carl Schmitts* (Berlin, 1992), esp. pp. 7–84; Matthias Kaufmann, *Recht ohne Regel. Die philosophischen Prinzipien in Carl Schmitts Staats und Rechtslehre* (Freiburg, 1988); Ingeborg Maus, *Bürgerliche Rechtstheorie und Faschismus. Zur sozialen Funktion der Theorie Carl Schmitts* (Munich, 1976); Peter Schneider, *Ausnahmezustand und Norm. Eine Studie zur Rechtslehre Carl Schmitts* (Stuttgart, 1957), pp. 259–78; Lorenz Kiefer, 'Begründung, Deziision und Politische Theologie. Zu den frühen Schriften von Carl Schmitt', *Archiv für Rechts- und Sozialphilosophie*, Vol 76 (1990).

¹⁰ In light of a growing body of scholarship that, like the jurisprudence of Schmitt, attributes a profound and unavoidable indeterminacy to all legal experience, Schmitt's legal ideas again take on fresh significance. In particular, Stanley Fish's recent post-structuralist-inspired attempt to defend a view of law which sees an arbitrary act of wilful power as constitutive of its very core comes strikingly close to Schmitt's analysis. Stanley Fish, *There's No Such Thing as Free Speech and It's a Good Thing Too* (New York, 1994), esp. pp. 141–79. Unfortunately, such theorists have yet to show why their more recent 'deconstructions' of the concept of legal determinacy can avoid all the ills exhibited by Schmitt's assault on legal determinacy. Few such authors even seem aware of the fact

I

Throughout his massive *oeuvre*, Carl Schmitt relies on idealized and downright misleading interpretations of classical liberal political and legal ideals as instruments for mocking contemporary liberal democratic practice. In order to criticize the mundane realities of contemporary parliamentary government, Schmitt's *The Crisis of Parliamentary Democracy* (1923) hearkens back to a make-believe world of pristine nineteenth-century liberal parliamentarism. So as to debunk contemporary conceptions of liberal constitutionalism, Schmitt's *Constitutional Theory* (1928) offers a negative portrayal of twentieth-century *positivist* constitutionalist thinking, à la Hans Kelsen, and then contrasts it unfavourably to the ambitious constitutional ideals of early liberals like Locke and Montesquieu. Schmitt's thinking on legal decision making similarly partakes of this rhetorically powerful — but intellectually suspect — ploy.

State, Movement, and Folk asserts that liberal conceptions of legal decision making rest on a 'normativistic faith' in a gapless legal system, and the corresponding view that all conceivable cases and situations can be unambiguously *subsumed* under a set of clear general norms. Liberals thus reduce the judge 'to an automaton into which legal documents and fees are stuffed at the top in order that it may spill forth the verdict at the bottom along with the reasons, read mechanically from codified paragraphs'.¹¹ In Schmitt's one-sided reading of liberal legal thought, Montesquieu's view of the judge as '*la bouche, qui prononce les paroles de la loi*' thus has gained something close to hegemonic status.¹² Because Montesquieu's mechanical conception of the judge is paradigmatic for liberalism as a whole, liberals allegedly believe that legal rules can guarantee a perfectly predictable and determinate decision in every conceivable

that Nazi legal thought rests on a radical critique of liberal law's quest for determinacy. For an excellent critical discussion of the debate about legal indeterminacy within contemporary radical North American jurisprudence: Lawrence Solum, 'On the Indeterminacy Crisis: Critiquing Critical Dogma', *University of Chicago Law Review*, Vol. 54, No. 2 (Spring 1987).

¹¹ The phrase here is Max Weber's. In contrast to Schmitt, however, Weber hopes that a more modest version of this ideal can be salvaged. Max Weber, *Economy and Society* (Berkeley, 1979), p. 979. For an account of Weber's contributions to jurisprudence: Anthony Kronman, *Max Weber* (Stanford, 1983).

¹² Schmitt, *Staat, Bewegung, Volk*, pp. 44–5. Schmitt refers on many occasions to this famous passage in Montesquieu. Yet Montesquieu's view of judicial action is more subtle than Schmitt concedes. Although Schmitt conveniently ignores this, Montesquieu notes that it is only in republics where 'the very nature of the constitution requires the judge to follow the letter of the law'. In a monarchy judges only need 'investigate their spirit' if laws are not explicit. Montesquieu, *The Spirit of the Laws*, trans. Thomas Nugent (New York, 1949), p. 75. In fairness to Schmitt, he does seem to provide a more sympathetic reading of Montesquieu at least at one juncture: Carl Schmitt, *Die Diktatur* (Munich and Leipzig, 1928), p. 109. But his overall interpretation remains too one-sided.

case. Liberals believe that *all* legal decisions are ‘easy’ cases, and *every* act of judicial subsumption can guarantee an unambiguously ‘right’ answer.¹³

It is precisely this highly selective interpretation of a rich tradition of liberal thinking about judicial action that constitutes the initial target of Schmitt’s 1912 *Law and Judgement: An Examination of the Problem of Legal Practice*. Here as well, Schmitt associates the core of liberal jurisprudence with Montesquieu’s view of judicial action in order to caricature traditional liberal legal ideals before, unsurprisingly, dismissing them out of hand. *Law and Judgement* easily demonstrates the crudeness both of Montesquieu’s views and modern legal movements influenced by him, such as the German Conceptual Jurists (*Begriffsjurisprudenz*).¹⁴ If laws could be perfectly clear and transparent, Schmitt claims, then liberals’ mechanical view of judicial decision making might possess some value. But in light of the fact that only a tiny number of cases involve both an adequately clear legal norm and an act obviously meant to be determined by it, the concept of a ‘smooth subsumption’ only applies to exceptional cases. In the overwhelming majority of situations faced by a judge, the liberal view provides no real help. Thus, Schmitt believes that his own contribution to a theory of legal decision making can rightfully *commence* from the assumption that ‘the traditional hermeneutics of valid law’ has already been effectively discredited.¹⁵ Given the manifestly anachronistic character of liberal views of legal judgment, *Law and Judgement* need not be concerned with reconstructing an identifiably liberal conception of judicial decision making. Instead, the task at hand must be to formulate a view of legal decision making that goes well beyond liberalism. Schmitt’s at times seemingly respectful references to early

¹³ Although the historical story here is complicated, one could argue against Schmitt that the *underlying insight* of liberal conceptions of judicial action takes a more modest — and defensible — form. In this view, the idea of legal determinacy consists of claiming that a legal norm ‘cannot bind in every direction the act by which it is applied. There must always be more or less room for discretion, so that the . . . [legal norm] . . . can only have the character of a frame to be filled by this act.’ In this more persuasive reading of the liberal idea of legal determinacy, ‘[t]he interpretation of a statute . . . need not necessarily lead to a single decision as the only correct one, but possibly to several which are all of an equal value’. Legal determinacy is never perfect. In every case a set of possible answers are defensible. Nonetheless, this set of possible answers remains relatively limited and predictable. Hans Kelsen, *The Pure Theory of Law* (Berkeley, 1967), pp. 349, 351.

¹⁴ Carl Schmitt, *Gesetz und Urteil. Eine Untersuchung zum Problem der Rechtspraxis* (Munich, 1968). The characteristic reference to Montesquieu is found on p. 7. As one recent historian of legal theory noted, *Begriffsjurisprudenz*, or the ‘jurisprudence of concepts’, ‘imagined [that] it had constructed a seamless network of rules which answered all problems scientifically, and excluded all extraneous values’. *Begriffsjurisprudenz* was criticized widely for its ‘excessively literal, and therefore often absurd and unjust adherence to the letter of the law’. J.M. Kelly, *A Short History of Western Legal Theory* (Oxford, 1992), pp. 359–60.

¹⁵ Schmitt, *Gesetz und Urteil*, p. 15.

liberal jurisprudence simply become a means to discredit the core intuition underlying all liberal ideals of judicial activity, namely the idea that the structure of the legal norm can provide meaningful — though inevitably imperfect — guidance for judicial actors.

Law and Judgement proceeds to offer a rigorous critique of influential attempts within modern jurisprudence to compensate for the inadequacies of mechanical jurisprudence. To those who admit that judges are necessarily forced to downplay the letter of the law and hence should instead focus on legislative intent, Schmitt responds that such views rest on a misleading conflation of state organs with concrete individual human beings. Recourse to concepts of ‘the will of the legislator’ or ‘the will of the statute’ simply obscures the nature of judicial action. The homogeneous, unified will implied by such terms is a fiction. This misleading personalization of state activity made some sense in the context of Absolutism when lawmaking did rest on the will of a concrete individual, but it makes no sense whatsoever as soon as numerous individual ‘wills’ are implicated in the legislative process. Even if we disregard this initial problem, the fact remains that ‘it is factually impossible to ascertain the real, psychological content of the will of a definite human being . . . for a definite period of time’.¹⁶ An examination of legislative proceedings and historical documents related to the origins of a particular statute also fails to resolve the dilemma at hand, for such materials should not be confused with the statute itself: ‘Only that published as a statute becomes a statute.’¹⁷ When relying on concepts of legislative intent, judges inevitably *construct* an ideal, rational legislator with little real relationship to the actual historical legislative process. ‘A “will” suspended in the air above the judge is always first and foremost the result of an interpretation’, and not, as defenders of this view posit, an objective state of affairs that a judge merely concretizes when engaging in legal interpretation. Legislative ‘will’ or intent is the product of legal interpretation,¹⁸ not its starting point. A (discretionary) interpretive act first *makes possible* those standards which judicial decision makers then, misleadingly, claim compose the basis of their decisions.

What then of the Free Law Movement, and its open acknowledgement of the discretionary character of all decision making? At first glance, *Law and Judgement* would seem to bring Schmitt into close proximity to the Free Law Movement and its central claim that the unavoidability of judicial discretion legitimizes the judge’s reliance on open-ended, supra-positive legal standards (for example: ‘the needs of commerce’).¹⁹ But Schmitt considers the Free Law

¹⁶ *Ibid.*, p. 27.

¹⁷ *Ibid.*

¹⁸ *Ibid.*, p. 32.

¹⁹ Political theorists are most likely to be familiar with the Free School of Law from Max Weber’s polemic against it in *Economy and Society*, where Weber associates the Free School with ‘anti-formal trends’ in the law and the ongoing decline of the rule of

School insufficiently rigorous. The Free Law School extends the statutory basis of judicial action by introducing new and more flexible standards into the legal system, thereby providing a legal basis for judicial discretion. But according to Schmitt, its proponents still implicitly assume that judges nonetheless ‘subsume’ individual legal acts under a set of legal rules, albeit a set of rules that has been substantially broadened. For Schmitt, the ghost of Montesquieu haunts even the most creative strands within modern legal thought, and a complete break with Montesquieu’s bankrupt intellectual legacy demands of us that we undertake a frontal assault on the last vestiges of ‘normativistic’ liberal legalism. Schmitt insists that the addition of vague standards into the legal system necessarily robs the concept of legal subsumption of any substance: a vague standard such as ‘the needs of commerce’ permits a panoply of alternative — and potentially contradictory — answers to a particular legal case.²⁰ The Free Law Movement thus points to the existence of a purely discretionary moment inherent in judicial action. But its defenders ultimately prove unable to face the full implications of their discovery. Ultimately, they revert to the least defensible myth of traditional liberal legal thinking, a moderate version of the idea of legal ‘subsumption’, despite the fact that their creative theoretical innovations rob the concept of subsumption of any real substance.

While openly building on the Free Law School’s tension-ridden defence of judicial discretion, Schmitt’s own model of judicial action strives to explode its (traditional liberal) confines. *Law and Judgement*’s answer to the central problem of any theory of judicial decision making — ‘When is a judicial decision a correct decision?’ — is already implied by Schmitt’s critical comments about Free Law. According to Schmitt, the Free Law School correctly anticipated that legal decision making is always characterized by what Schmitt describes as a ‘moment’ of ‘indifference in reference to the content’ of law (*inhaltlicher Indifferenz*).²¹ The relationship between the legal norm and the judicial actor inevitably involves an element of ‘indifference’ or indeterminacy *vis-à-vis* the legal norm. In more familiar terms: an element of discretion characterizes judicial decision making.²²

law. Schmitt and Weber agree that the Free Law Movement initiates a series of theoretical innovations incompatible with liberal concepts of norm-based legal decision making. Unlike Weber, however, Schmitt sides with the Free Law School in its battle against traditional liberal jurisprudence: Schmitt believes that the Free Law movement is *inadequately* radical in its assault on traditional liberal jurisprudence. Max Weber, *Economy and Society*, esp. pp. 882–95. For an accessible general discussion of the Free Law School: Kelly, *Short History of Western Legal Theory*, pp. 359–64.

²⁰ Schmitt, *Gesetz und Urteil*, pp. 20–1, 40–1.

²¹ *Ibid.*, p. 67.

²² *Ibid.*, pp. 48–50. Schmitt tries to enlist Hegel as an ally here by recalling the argument in *The Philosophy of Right* that ‘[d]etermination . . . imposes only a general limit within which variations are also possible . . . It is impossible to determine by reason, or to decide by applying a determination derived from the concept, whether the just

But how then is the political community to be spared the obvious ills of a discretionary judiciary unregulated by the letter of the law? The young Schmitt is worried about the spectre of judicial arbitrariness and 'subjectivism'. Quite provocatively, *Law and Judgement* argues that indeterminacy at the level of the law's manifest structure need *not* generate judicial chaos. *Indeterminacy within the sphere of legal norms and standards still leaves open an alternative path to legal determinacy (Rechtsbestimmtheit)*. The task at hand involves reconceptualizing the problem of legal determinacy so as to break dramatically with liberal jurisprudence and its obsession with the relationship between the legal norm and the judicial actor; the task left unfinished by the Free Law School needs to be completed. Determinacy should no longer be conceptualized in terms of a 'subsumption' of a particular act under a legal norm or standard. But if legal determinacy is no longer to be located in the nexus between the legal norm and the judge, where might we look to conceive of its possibility? Schmitt offers a novel answer to this question: legal determinacy still legitimately constitutes the guiding principle of the legal system. Yet the problem of legal determinacy must be conceptualized anew so as to focus on the *relationship between the individual judge and his peers*. In other words: the 'normativistic' liberal focus on the relationship *between the norm and the judge* needs to be jettisoned for an emphasis on the relationship *between judges*.

In Schmitt's view at this time, judges should acknowledge the obligatory status of a simple but absolutely pivotal principle: 'a judicial decision is correct today when it can be assumed that another judge would have decided in the same way'.²³ Judges can no longer seek recourse either to the letter of the law or to any of a series of compensatory mechanisms proposed by previous jurists in order to generate predictability and regularity. Instead, they need to engage in the thought experiment of asking themselves whether 'another judge' would have acted in exactly the same manner. Existing legal practice already hints at the legitimacy of this principle — when judges write legal decisions, they appeal to their colleagues; when a particular case takes on special importance, it is common to insist that a number of judges co-operate in solving the case — but it now needs to gain open recognition as a superior source for an identifiably post-liberal concept of legal determinacy. According to Schmitt, '[t]he "other

penalty for an offence is corporal punishment of forty lashes or thirty-nine, a fine of five dollars as distinct from four dollars and twenty-three groschen or less . . . It is reason itself which recognizes that contingency, contradiction, and semblance have their sphere and right'. Hegel, *Elements of the Philosophy of Right*, ed. Allen Wood (Cambridge, 1991), para. 214. But at least two key differences separate Schmitt and Hegel on this point. First, for Hegel such 'indeterminacy' is a genuinely peripheral aspect of legal experience, in part because Hegel takes liberal ideas of legal determinacy quite seriously. Second, this moment of 'indeterminacy' is never associated, as it will be in Schmitt's later writings, with a moment of irrational, normatively unregulated power or arbitrary wilfulness.

²³ Schmitt, *Gesetz und Urteil*, p. 71.

judge" here described is the empirical type of the modern expertly trained jurist'.²⁴ The 'normal' judge of Schmitt's own day is the standard for his proposed test. In this model, judicial 'practice justifies itself by means of its own practices'.²⁵ Legal norms, standards and concepts are no longer 'containers into which the judge deposits a particular act'. Instead, they represent mere 'instruments for justifying an expectation', namely that other judges would have decided in the same way.²⁶ Traditional judicial strategies — a reference to the letter of the law, for example — can still legitimately be employed by the judge, but only if the judge in question understands the limits of such strategies by acknowledging that they are nothing but useful tools for ascertaining how the 'other judge' would have acted.

Schmitt's creative resolution of one of the perennial dilemmas of jurisprudence still leaves an obvious question unanswered: can it work? Might an appeal to the 'empirical type of the modern expertly trained jurist' provide the judge with the meaningful guidance that liberals hope to provide by means of binding legal actors to the norm, and thereby guarantee a measure of determinacy within the law? Given the manifest diversity of types of 'expertly trained jurists' in the modern world, there is certainly good reason to doubt Schmitt's assertion. Liberals and conservatives, socialists as well as defenders of economic *laissez-faire*, have composed the ranks of expertly-trained modern jurists. Frankfurter and Kelsen — as well as Freisler and Vyshinsky — belong among them. A thought experiment in which the judge looks to the world of other 'expertly trained jurists' is unlikely to provide perfectly unambiguous answers to difficult legal cases.

In my reading, Schmitt's argument probably only makes sense if the heterogeneity of modern jurisprudence is substantially downplayed. At least implicitly, Schmitt here presupposes a significant degree of political, social and doctrinal homogeneity within the German judiciary; from Schmitt's perspective the relative unanimity of socially conservative and deeply anti-democratic views among German jurists in 1912 certainly must have provided some

²⁴ *Ibid.*, pp. 71, 78–9.

²⁵ *Ibid.*, p. 86.

²⁶ *Ibid.*, p. 88. Fred Whelan has suggested to me that this vision may be akin to the traditional English idea of a community of judges whose special training in the intricacies of the common law allegedly can provide for a measure of legal predictability. But we might do well to recall that a crucial element of this experience, as Max Weber argued, was that English common lawyers long constituted 'a strong organized guild which, by corporate and economic interests, through a monopoly of the bench and a central position at the seat of the central courts' gained 'a measure of power which neither King nor parliament' could ignore. Max Weber, *Economy and Society*, p. 794. If this comparison is a fair one, how then does Schmitt hope to guarantee a similar corporate spirit among modern expert jurists?

empirical plausibility to this assumption.²⁷ Only in a relatively homogeneous judicial universe might the imperative to turn and consider the views of legal colleagues conceivably provide some minimal degree of determinacy within the legal system.

Unfortunately, *Law and Judgement* leaves this crucial assumption unstated. But it is a striking assumption in light of Schmitt's subsequent claim in *State, Movement, and Folk* that only homogeneity within the judiciary can guarantee some measure of legal determinacy. Clearly, there is no trace of the horrible *ethnacist* homogeneity later defended by Schmitt: it would be indefensible to ignore the crucial differences between Schmitt's first contribution to legal theory and its subsequent rendition in the Nazi period. Nonetheless, an undeniable parallel exists between Schmitt's position in 1933 and the legal ideas elucidated in *Law and Judgement*. Well before the Nazi seizure of power, Schmitt offers a scathing critique of liberal ideas of norm-based legal decision-making that both emphasizes the discretionary character of judicial action *and*, simultaneously, attempts to counteract the potent ills of discretion by pointing to the legal virtues of a 'homogeneous' judiciary. Alongside an emphasis on the inevitable indeterminacy of *liberal* jurisprudence we find the *anticipation* of an alternative means for guaranteeing legal regularity: homogeneity.

II

The young Schmitt's second major contribution to political and legal thought, the 1914 *The Value of the State and the Significance of the Individual*, at first glance represents a polemic against precisely the cynical view of law that would later gain a wide following among Nazi jurists. Schmitt vehemently criticizes a diversity of 'power-theories' of law that reduce the legal system to nothing but a 'game' among competing power interests.²⁸ Such theories obscure law's essentially normative character. They provide no real place for the task of legal argumentation and justification. When pursued consistently, realist views of law deny the integrity of legal discourse by interpreting legal argumentation as a mere epiphenomenon of a more fundamental struggle among competing politi-

²⁷ It is revealing that the application of Schmitt's theory would surely have resulted in increased authority for the judiciary *vis-à-vis* the (norm-generating) legislature — precisely at that historical juncture when Social Democracy had made substantial electoral gains. (In 1912 the SPD gained a substantial 34.8% of all votes cast in parliamentary elections. Just twenty-five years earlier, in 1887, the SPD had received a mere 10.1%.)

²⁸ Carl Schmitt, *Der Wert des Staates und die Bedeutung des Einzelnen* (Tübingen, 1914), p. 22. Schmitt seems to have a number of different legal theories in mind, including socialist-oriented views that conceive of law as an instrument of the dominant social class. Some of Schmitt's observations about the limits of power-realist views of law resemble the underlying argumentation of Alexander Passerin d'Entreves' classic *The Notion of the State* (Oxford, 1967).

cal and social constituencies. Thus, power-realist views of law ultimately reduce law to nothing but *facticity*: they can only speak coherently about the social and political ‘facts’ of empirical power, but hardly of ‘norms’ and the problems of legal justification.

Schmitt then relies on this otherwise persuasive criticism of power-realist conceptions of law in order to justify a conclusion that by no means automatically follows from it. He believes that an assault on a crude reductionist interpretation of law allows him to defend a thesis no less extreme than the view he challenges. Allegedly, law and power need to be seen as constituting two absolutely distinct spheres. Even those conceptions of law that permit power to be conceptualized as just one element of law, he now argues, inevitably ‘pollute’ the normative core of law and thus distort its very core. Law constitutes a ‘pure’ set of norms, the realm of ‘ought’ (*Sollen*), in stark contrast to the facticity (*Sein*) of empirical power struggles. Any attempt to mix the two spheres obscures law’s essence: ‘pure law’ is utterly distinct from ‘pure (that is, legally unregulated) power’. ‘If law is to exist, it cannot be derived from power, for the gap between law and power simply cannot be bridged.’²⁹ The realm of facticity, the sphere of concrete power, cannot ground normativity, the sphere of legal norms. Concrete power relations are essentially alien to law and its normative core. What lacks normative significance (power) cannot be transformed into something normative; an area of social existence ‘alien to values’ (*Wertfremde*) cannot take the form of a set of values or norms. In a manner at times strikingly reminiscent of Hans Kelsen’s neo-Kantian legal positivism and its insistence on a radical division between legal science and a sociology of empirical power relations, the young Schmitt similarly posits the existence of two altogether different ‘worlds’.³⁰ Law consists of norms, but power is essentially a problem

²⁹ Schmitt, *Der Wert des Staates und die Bedeutung des Einzelnen*, p. 29.

³⁰ Notwithstanding Schmitt’s subsequent hostility to Kelsen, Schmitt praises Kelsen in his early works, and even begins with a set of assumptions similar to Kelsen’s. Schmitt, *Der Wert des Staates und die Bedeutung des Einzelnen*, pp. 30–1, 77. Kelsen analogously argues that legal analysis should be clearly delineated from a sociology of empirical power relations. Kelsen posits a ‘pure theory of law’ from which an empirical analysis of the concrete dynamics of state power has been excluded; Schmitt then responds with a theory of law in which ‘pure power’ plays a pivotal role and the place of (normative) legal restraints is demoted. As Hermann Heller argued in the 1920s, Schmitt’s ‘decisionism’ thus ultimately reproduces the ills of Kelsen’s positivism. Kelsen offers us a theory of the ‘will-less norm’ and Schmitt then responds with a theory of the ‘norm-less will’. Hermann Heller, *Gesammelte Schriften*, Vols. I–III (Leiden, 1971). David Dyzenhaus’s forthcoming *Truth’s Revenge: Carl Schmitt, Hans Kelsen and Hermann Heller in Weimar* (Oxford) offers an excellent discussion of the Weimar debates from the vantage point of Heller’s analysis of the complementary features of the theories of Schmitt and Kelsen.

of the will, and even 'a gradual transition [from the norm to the will] is unthinkable'.³¹

But the young Schmitt quickly parts company from Kelsen. Whereas Kelsen rests satisfied with positing an insurmountable divide between the spheres of pure law and concrete power, Schmitt struggles to overcome the antinomy between law and power. Alas, his quest to do so suffers from the idiosyncracies of his analytical starting point. Like water and oil, law and power cannot be properly fused or blended. Thus, when Schmitt tries to bring law and power into a more intimate relationship, he is forced to argue that the 'purity of power' has to remain intact. Even though *The Value of the State and the Significance of the Individual* polemicizes against power-realist interpretations of law, Schmitt's own view ultimately proves closer to those of his opponents than he would prefer to have us acknowledge. Within Schmitt's vision of the legal system, expressions of unregulated 'pure power' ultimately remain inescapable as well.

Although the spheres of power and law cannot be merged or fused, a means of linking the two spheres can be found. In Schmitt's account, this is precisely the function of the state. State organs undertake to translate the norms of the abstract legal universe into concrete reality. The state acts as a transmission belt between the legal sphere and the world of everyday power politics, between normativity and facticity. By undertaking to realize abstract legal norms, state institutions find themselves situated fruitfully between the realms of facticity and normativity, and thus capable of mediating between the two spheres. Yet this mediation comes at a price. To the extent that the state makes it possible to render the 'heavenly' realm of legal normativity relevant for the mundane sphere of 'earthly' reality, law is forced to surrender its heavenly character. More specifically: the realization of legal normativity in the world of everyday empirical facts necessitates that it compromises its normative virginity. When law is *realized* and thus brought into the sphere of factual power relations, it is forced to make concessions to a universe alien to its own internal dynamics. What form must this compromise take? In light of Schmitt's formulation of the problem at hand, the answer is clear: law inevitably contains elements of that universe which it has been forced to enter into a compact with, namely the sphere of empirical power. When realized by governmental bodies, law includes a moment of normatively unregulated facticity, of *pure power* or *wilfulness*.

The Value of the State and the Significance of the Individual thus represents a crucial evolutionary step within Schmitt's legal thinking. First, Schmitt now can offer a more detailed explanation of the underlying sources of indeterminacy in legal decision making. *Law and Judgement* generally focused on *debunking* widely accepted views of judicial action in order to demonstrate the necessity of indeterminacy within legal decision making; *The Value of the State*

³¹ Schmitt, *Der Wert des Staates und die Bedeutung des Einzelnen*, p. 30.

and the Significance of the Individual now locates the fundamental source of the ‘indifference in reference to the content’ of the law in the state’s struggle to mediate between ‘pure power’ and ‘pure law’.³² Due to the unavoidable concessions that the sphere of normativity is forced to make to the realm of facticity, a ‘sovereign decision’ is essential to legal experience. Law can never remain normatively pure if it is to become effective. From this perspective, legal indeterminacy is more than a narrow juridical problem. Instead, it stems from the very heart of the political condition, conceived here as a tragic quest to link two profoundly distinct facets of human existence, normativity and facticity. Second, Schmitt now explicitly associates the ‘moment’ of ‘indifference in reference to the content’ of the law with an expression of ‘pure power’; this idea was probably suggested by *Law and Judgement*, but it was never formulated with sufficient clarity. Hence, Schmitt’s claim is more ambitious than seemed evident in *Law and Judgement*. Not only is legal decision-making inherently discretionary, but discretion consists of perfect ‘wilfulness’, an expression of ‘pure power’ unrestrained by the sphere of legal norms.

By suggesting that legal determinacy can be salvaged even if we acknowledge the inevitability of judicial discretion *vis-à-vis* the legal norm, *Law and Judgement* tended to downplay this more dramatic implication of Schmitt’s critique of liberal jurisprudence. But *The Value of the State and the Significance of the Individual* points the way to an alternative — and more radical — argument.

III

In the shadow of Germany’s wartime defeat and then the Revolution of 1918–1919, Schmitt’s views on the indeterminacy of law undergo precisely the radicalization anticipated by *The Value of the State and the Significance of the Individual*. Faced with the emergence of the Weimar Republic and its quest to bring the virtues of the rule of law to Germany, Schmitt formulates the outlines of an authoritarian legal theory that not only goes well beyond the critique of liberal jurisprudence outlined in *Law and Judgement*, but clearly points the way to *State, Movement, Folk*.

Free of the irrationalist histrionics found in many of Schmitt’s subsequent writings, the erudite 1921 *Dictatorship* relies on an impressive survey of the history of political and legal ideas about dictatorship in order to distinguish between *commissarial* and *sovereign* dictatorship: the former is temporary and aims at the restoration of an existing legal order, whereas the latter brings about a revolutionary transformation of the status quo into a novel alternative order. Even more fundamental for our purposes here, Schmitt unambiguously links his previous theorizing about legal indeterminacy to the institution of dictatorship. In some contrast to *Law and Judgement*, the dilemma of legal indeterminacy is no longer conceived here chiefly as a problem of judicial discretion and

³² *Ibid.*, p. 79.

thus of interest primarily as an element of judicial action. Now, legal indeterminacy is seen as possessing profound relevance for understanding a variety of legal actors and institutions, the most revealing of which is the *dictator*. For Schmitt, the concept of dictatorship constitutes the 'missing link' of modern jurisprudence. Dictatorship represents a paradigmatic attempt to grapple seriously with the exigencies of legal indeterminacy.

The work's preface restates the now familiar idea that an 'opposition' inevitably exists between a legal norm and the method of realizing it. In the language of Schmitt's pre-war contributions to legal theory, a 'moment of indifference in reference to the content' of the law results from the attempt to realize law in the sphere of concrete facticity. But Schmitt makes a crucial additional claim here. He argues that the omnipresent possibility of a gap between legal norms and the manner in which they gain realization in the concrete world is precisely 'where the essence of dictatorship lies'.³³ An analysis of the problem of dictatorship is crucial for acknowledging that the realization of a legal norm rests unavoidably on forms of (normatively unregulated) discretionary action. 'To speak in abstract terms, the problem of dictatorship, which has far too rarely been systematically analyzed, is the problem of the concrete exception within legal theory.'³⁴ For example, in a commissarial dictatorship legal norms are abrogated for the sake of realizing a 'concrete goal' essential to the re-establishment of political order. Because the specific actions necessary for overcoming a dire crisis cannot be predicted beforehand, the dictator must rightfully be free of ordinary legal restraints. In fact, a dictator will be forced to make use of individual or concrete measures in accordance with the concrete imperatives of the crisis at hand. In short, the dictator will not be able to rely on general legal norms. Yet dictatorship for Schmitt is no mere *negation* of law. A commissarial dictator should aspire to restore the previously valid system of ordinary law, and a dictatorship that fails to bring about a situation of legal normalcy represents nothing but a vicious form of 'despotism'.³⁵ In the simplest terms: the quest to realize a functioning system of legal norms presupposes a discretionary, non-normative exercise of power — a (dictatorial) moment of 'indifference in reference to the content' of the law.

Dictatorship is a janus-faced book. The 'moment' of 'indifference in reference to the content' of the law remains just that in *Dictatorship* — a *moment* of legal existence. Thus, the spectre of dictatorship still tends to represent a mere 'moment' for Schmitt in 1921, that is, a temporary and well-defined instrument that even liberal democracy occasionally should employ amidst a serious crisis in order to guarantee the very preconditions of legal and political order. But *Dictatorship* also lends itself to a more dramatic interpretation. For

³³ Schmitt, *Die Diktatur*, p. viii.

³⁴ *Ibid.*, p. ix.

³⁵ *Ibid.*, p. viii.

Schmitt, dictatorship and legal indeterminacy seem to exist in a relationship of 'elective affinity' akin to the manner in which the faith in clear, determinate law is intimately related to parliamentary democracy.³⁶ Liberalism obscures the role of indeterminacy in the *legal* universe. In a parallel fashion, liberals naïvely believe that the spectre of dictatorship can be driven from the *political* universe. In light of the 'elective affinity' between legal indeterminacy and dictatorship as well as the unavoidability of the former, why not then simply dump liberal democracy for a dictatorial alternative better equipped to handle the demands of legal indeterminacy? If legal indeterminacy is as weighty a problem as Schmitt suggests, is not dictatorship preferable to liberal democracy and its 'normativistic' failure to acknowledge the enigma of legal indeterminacy?

Schmitt ultimately embraces the latter, more radical position: in the early 1930s, Schmitt openly emphasizes the problem of legal indeterminacy in order to justify an authoritarian alternative to Weimar democracy.³⁷ But even by the early 1920s, this tendency in Schmitt's thinking is anticipated by core elements of his legal theory.

It is important to see why Schmitt's use of the expression 'moment' in his account of the role of 'indifference in reference to the content' of the law is no longer fully appropriate here. The term 'moment' might suggest that indeterminacy is nothing but one among a number of distinct elements constitutive of legal experience, maybe even that law *for the most part* can be rendered determinate and predictable; that was precisely the aspiration of *Law and Judgement*. Yet if the 'indifference in reference to the content of the law' consists, as Schmitt also claims, of pure power and perfect wilfulness, it makes little sense to speak merely of a 'moment' of arbitrariness within law. *If the element of arbitrary power within law is genuinely 'pure', it would seem to follow that it is potentially unlimited: by definition, pure power or pure wilfulness probably must remain an untamed and (normatively) unregulated form of power.* The 'moment' of legal indeterminacy first conceptualized in *Law and Judgement* has then, in all probability, to be truly pervasive: law's dominant feature. Arbitrariness seems destined to make up a *ubiquitous* facet of all legal experience.

This is precisely the thesis suggested by the 1922 *Political Theology*. Although Schmitt's terminology shifts slightly — he now speaks of the centrality

³⁶ Carl Schmitt, *The Crisis of Parliamentary Democracy*, trans. Ellen Kennedy (Cambridge, 1985), pp. 33–50.

³⁷ Carl Schmitt, *Legalität und Legitimität* (Munich, 1932), esp. p. 87. For an interpretation of the arguments of this crucial text: W.E. Scheuerman, 'The Rule of Law Under Siege: Carl Schmitt and the Death of the Weimar Republic', *History of Political Thought*, Vol. 14, No. 2 (1993). As we have seen, Schmitt's Nazi-era writings then make legal indeterminacy the starting point for justifying a legal order for the Nazi dictatorship.

of the 'exception' for law³⁸ — he insists on the genuinely *universal* significance of the 'indifference in reference to the content of law' first described in *Law and Judgement*: the exception refers to 'a general concept in the theory of the state, and not merely to a construct applied to an emergency decree or state of siege'.³⁹ It would be mistaken to associate the 'moment of indifference' merely with a profound crisis or state of emergency, let alone a peripheral element of judicial decision making, for '[a]ll law is "situational law"'.⁴⁰ *In its very essence, all legal experience is permeated by indeterminacy, by the ever-changing dictates of the 'concrete exception'.* Schmitt does admit that 'the autonomous moment of the decision recedes to a minimum' during moments of relative political normalcy.⁴¹ But even this 'minimum' is destined to remain quite substantial given the undefinable and unlimited contours of a pure wilfulness understood to constitute the heart of legal experience. Law is to be conceived of as based ultimately on a 'pure decision not based on reason and discussion and not justifying itself . . . an absolute decision created out of nothingness'.⁴² Because the precise role of even the most unambiguous legal concepts depends on an act of 'pure will' whose structure, by definition, remains open-ended, every abstract legal concept is 'infinitely pliable'.⁴³ Although the

³⁸ The conception of the 'concrete exception' is intimately related to the idea of 'indifference in reference to the content' of the law. For Schmitt, '[t]he exception is that which cannot be subsumed; it defies general codification, but it simultaneously reveals a specifically juristic element — the decision in absolute purity. The exception appears in its absolute form when a situation in which legal prescriptions can be valid must first be brought about.' Carl Schmitt, *Political Theology*, trans. George Schwab (Cambridge, 1985), p. 13.

³⁹ Schmitt, *Political Theology*, p. 5.

⁴⁰ *Ibid.*, p. 13. Again, legal indeterminacy here is considered to be of significance to more than a narrowly-defined category of legal decision makers, *the judiciary*: it is now seen as pointing to the fact that a rich diversity of political and legal actors inevitably subordinate 'normativistic' law to exercises of pure power or wilfulness.

⁴¹ *Ibid.*, p. 12.

⁴² *Ibid.*, p. 66. On the structure of Schmitt's 'decisionism': Christian Graf von Krockow, *Die Entscheidung. Eine Untersuchung über Ernst Jünger, Carl Schmitt, Martin Heidegger* (Stuttgart, 1965).

⁴³ Schmitt, *Political Theology*, p. 17. This claim is crucial for making sense of Schmitt's legal thought in the middle and late 1920s. Commentators have struggled with the fact that Schmitt seems to *revert* to a more traditional liberal vision of the rule of law during this period. That is, Schmitt suddenly seems to downplay his earlier radical arguments about legal indeterminacy in favour of relying on a strikingly traditional definition of the liberal rule of law in order to argue against defenders of Weimar's emerging democratic welfare state, which Schmitt believes that he can disparage by emphasizing its purported incompatibility with the liberal rule of law. But a careful examination of Schmitt's argumentation explains why there is less of a contradiction here than first seems to be the case: Schmitt's definition of the rule of law in many of the texts in question turns out to be exceedingly open-ended, even 'infinitely pliable'. In the 1928 *Constitutional Theory*, where Schmitt offers his most detailed definition of the modern

liberal rule of law may appear effective at a specific historical juncture, a closer look will reveal the utterly open-ended manner in which even general norms and concepts are manipulated by political and legal actors. Fundamentally, every judicial act is an intrinsically political act in which judges make 'sovereign decisions' in favour of a particular set of political aspirations: 'in every [legal] transformation there is present an *auctoritatis interpositio*' in which the *auctoritatis interpositio* cannot be traced to the legal norm.⁴⁴ As Schmitt comments later in *The Concept of the Political*, 'the sovereignty of law means only the sovereignty of men who draw up and administer the law'.⁴⁵ The general concepts and norms of the traditional liberal rule of law constitute a mask for a 'will to power' — eagerly donned by legalistic bourgeois liberals who refuse to acknowledge the core imperatives of a violent and explosive political universe.

As John McCormick has perceptively observed, the idea of dictatorship similarly takes a more radical form in *Political Theology* than *Dictatorship*, published only a year earlier. Whereas *Dictatorship* for the most part can be read as a defence of a temporary commissarial dictatorship fitted out with exceptional powers in order to restore the state of legal normalcy, *Political Theology* allows 'the ordinary rule of law [to be] dangerously encroached upon by exceptional absolutism'.⁴⁶ In *Political Theology* we can already detect the makings of Schmitt's vision of an authoritarian alternative to Weimar, a *sovereign* dictatorship that rests on an appeal to the Weimar president, 'as the personal embodiment of the popular will which cannot be procedurally ascertained in a time of crisis'.⁴⁷ Although the sources of Schmitt's shift from a defence of a commissarial to a sovereign dictatorship remain complex and multi-faceted, my argument here should help explain one of them: to the extent that the logic of Schmitt's underlying argumentation leads him to make indeterminacy an all-important, omnipresent facet of law, its most complete institutional comple-

ideal of the rule of law, he argues that it is incompatible with 'legal dispensations and privileges, regardless of what form they take'. (Carl Schmitt, *Verfassungslehre* (Munich, 1928), pp. 154–5). In other words: the rule of law is incompatible with any *differentiated* or *specialized* form of legislation whatsoever (focused on specific objects or categories of people). In an earlier 1926 text, the rule of law is generally seen as being incompatible only with 'individual' laws, that is, acts of legislation that single out an individual object or person. (Carl Schmitt, *Unabhängigkeit der Richter, Gleichheit vor dem Gesetz und Gewährleistung des Privateigentums nach der Weimarer Verfassung* (Berlin, 1926). In other words, Schmitt guarantees that a crucial element of 'indeterminacy' inheres within the very core of the liberal rule of law — at least as he sees fit to define it.

⁴⁴ Schmitt, *Political Theology*, p. 31.

⁴⁵ Carl Schmitt, *The Concept of the Political*, trans. George Schwab (New Brunswick, 1976), p. 67.

⁴⁶ John McCormick, 'The Dilemmas of Dictatorship: Carl Schmitt and Constitutional Emergency Powers', *Canadian Journal of Law and Jurisprudence* (forthcoming, 1997).

⁴⁷ *Ibid.*

ment, dictatorship, similarly must gain in significance. If legal indeterminacy is a truly ubiquitous facet of legal experience, then dictatorship similarly must take something close to an omnipresent, even permanent form. But then a temporary, limited commissarial dictator is surely inadequate to the tasks at hand, for the enigma of legal indeterminacy necessitates a more radical form of dictatorship than that endorsed by Schmitt in 1921.

Political Theology says nothing about how legal indeterminacy might be combatted. In contrast to *Law and Judgement*, Schmitt seems more concerned here with discrediting *any* concept of legal determinacy than with formulating a post-liberal view of it. In my reading, this shift in emphasis points to a crucial tension within Schmitt's legal thinking. To the extent that legal indeterminacy is identified with an act of unregulated, brute power, a 'pure decision', is it possible for Schmitt to offer a coherent conception of legal determinacy? Does not the idea of a predictable, determinate legal system necessarily suggest the need for *some*, however minimal, restraints on the exercise of arbitrary power? If so, can Schmitt *both* conceive of the rule of law as nothing but 'the sovereignty of men who draw up and administer the law' *and* posit, as he did in *Law and Judgement*, the possibility of a new form of legal determinacy?

State, Movement, Folk would again try to synthesize Schmitt's radical 'decisionism' and its valorization of 'a pure decision not based on reason and discussion and not justifying itself . . . an absolute decision created out of nothingness' with legal determinacy, albeit in an idiosyncratic post-liberal form. Maybe now we can better understand why this task was destined to fail from the very outset. What type of grounding can Schmitt possibly provide for legal limits to the exercise of power if law ultimately is conceived as an arbitrary 'sovereignty of those men who draw up and administer law'? A concept of law that associates law with an act of unregulated brute power — Schmitt himself seemed to identify the limitations of this view in *The Value of the State and the Significance of the Individual* — is unlikely to prove effective in justifying limits to the exercise of discretionary authority.

Unsurprisingly, Schmitt's contributions to Nazi law helped bring about an assault on the fundamentals of the rule of law unprecedented in modern times.⁴⁸ The 'ethnic cleansing' of German jurists — enthusiastically endorsed by Schmitt in the 1930s — only exacerbated the Nazi regime's hostility to the modern legal tradition. 'Homogeneity' within the judiciary hardly guaranteed even the most minimal degree of legal determinacy, notwithstanding Schmitt's arguments to the contrary.⁴⁹

⁴⁸ On Nazi law: Ernst Fraenkel, *The Dual State* (New York, 1991); Franz L. Neumann, *Behemoth: The Structure and Practice of National Socialism, 1933–1944* (New York, 1944).

⁴⁹ In fairness to Schmitt, his pre-1933 writings lack the anti-semitic and ethnicist currents so obvious in *State, Movement, Folk* and other Nazi-era writings. But recall Schmitt's claim in *Political Theology* that the 'core of the political idea' is the 'pure

IV

In an October 1968 preface to the West German reissue of *Law and Judgement*, Schmitt commented that too many 'heated polemics' had resulted in an unfair tendency to discredit his political and legal ideas. In his view, hostile critics had reduced 'decisionism' to a 'dangerous worldview', and the word 'decision' was unfairly associated with a 'fantastic act of wilfulness'. He adds that *Law and Judgement* points to 'the simple origins of the starting point [of decisionism]'. It makes the original meaning of judgement and decision-making crystal clear'. Thus, the eighty-year-old political thinker hoped that a fair-minded reconsideration of the origins of decisionism in his early reflections on the problem of legal indeterminacy could help bring clarity to a 'confused' and 'polemical' debate.⁵⁰

Here, I have tried to show that a second look at the young Schmitt's legal thinking *does* bring clarity to the 'confused' and 'polemical' debate about his theoretical and political legacy. *Pace* Schmitt, it helps demonstrate that Schmitt's embrace of German fascism was anticipated by key elements of his thinking about the dilemma of legal indeterminacy — well before Hitler's rise to power.

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decision not based on reason and discussion and not justifying itself . . . an absolute decision created out of nothingness'. What arguments can a 'decisionism' of this sort possibly offer *against* radical nationalism and anti-semitism? The basic arguments of Schmitt's pre-1933 writings did not necessarily *predestine* Schmitt for anti-semitism, but they provide no real protection for him against it either. For a more detailed account of this important issue see W.E. Scheuerman, 'The Fascism of Carl Schmitt: A Response to George Schwab', *German Politics & Society*, No. 29 (Summer 1993).

⁵⁰ Schmitt, *Gesetz und Urteil*, p. v.